

The above language with regard to amendments is repealed by the 12th and 13th New Orders, which provide for amendments, either as of course, or on motion.

Another Order of 1846 states the practice on the warrant :

That such applications to the Master shall be made by taking out a warrant which shall be under-written with the object of the application, and the same shall be served two clear days before the return thereof.

1846.

183.

Warrant to run two clear days.

The conditions of the Order for time, are prescribed by the 184th and two following Orders of 1846, as follows :

That in every Order granted by the Master for further time to answer shall be made a condition of such Order that the defendant shall enter his appearance with the Registrar and consent, that in case of default the plaintiff shall be entitled to a writ of sequestration, unless under any special circumstances the Master shall otherwise direct, and which circumstances shall be shortly stated in the Order made upon such application.

1846.

184.

Condition of Order for time. Defendant must appear.

The use of the above is not very clear. Unless the defendant had already appeared, or the plaintiff had appeared for him, in which case his own appearance is not necessary, the time could not be running against him for answering, and therefore the application could hardly be necessary. The rule has consequently not come in question in practice.

That upon such applications aforesaid the Master shall be at liberty to direct, and shall accordingly in the Orders made thereon direct whether the costs of the application shall be costs in the cause, or whether such costs, or any part thereof, shall be paid by any of the parties personally ; and in the latter case the Master shall in such Order either fix the sum to be paid for such costs or tax the same at his discretion, and the party, to whom such costs are directed to be paid, shall be entitled to sue out a subpoena for the same, or the Master may in his discretion award costs to neither party.

1846.

185.

Costs on applications for time to answer.

That the Master shall draw up the Orders upon such applications aforesaid in a short form, and the same, when signed by him, shall be entered in a book to be kept for that purpose in the office of the Master ; and such Orders shall then be binding (unless reversed or varied on ap-

1846.

186.

Orders for time drawn up by the Master.